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Bill would ban some chemicals from school foods, snacks

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Get ready for another food fight in the Legislature, as lawmakers weigh a potential ban on certain chemical food additives from being used in food served in California schools.

It's a follow-up effort for Assemblyman Jesse Gabriel, D-Encino, from last year's successful AB 418, the California Food Safety Act, which banned a number of chemicals from being used in food sold in California - the infamous "Skittles ban" bill, which didn't ban Skittles but did ban a chemical ingredient found in the popular candy.

AB 2316, Gabriel's new bill, extends the ban to Red Dye No. 40, Yellow Dye No. 5, Yellow Dye No. 6, Blue Dye No. 1, Blue Dye No. 2 and Green Dye No. 3, as well as titanium dioxide - chemicals that have been linked to causing a number of behavioral problems in children. The European Union currently bans the sale of food with titanium dioxide in it because of the health issues it is known to cause.

While Gabriel stressed that his bill doesn't ban any particular food products, it would de facto ban the sale of products including Froot Loops and Flamin' Hot Cheetos from being served in California schools, unless the makers of those products substituted the prohibited chemicals with safer alternatives, he said.

AB 2316 is being met with pushback from some industry groups, including the National Confectioners Association, which issued a statement Tuesday in response to the bill.

"It's time for (Food and Drug Administration) Commissioner (Robert) Califf to wake up and get in the game. These activists are dismantling our national food safety system state by state in an emotionally-driven campaign that lacks scientific backing. FDA is the only institution in America that can stop this sensationalistic agenda which is not based on facts and science," the group said in a statement.

The group pointed out that there is no FDA-approved alternative to titanium dioxide to make sure food maintains shelf life, pigment and opacity.

The FDA hasn't assessed titanium dioxide's safety to use in food products since 1966, and some of the other chemicals included in the AB 2316 ban were first approved in the '30s.

Gabriel's AB 418 initially included a ban on titanium dioxide in all food products, but he said he pulled that language from the bill so that it would pass with bipartisan support, which it did.

Gabriel has several allies in the fight to get AB 2316 passed, including bill co-sponsors Consumer Reports and the Environmental Working Group.

And then there's celebrity chef Tom Colicchio.

Though Colicchio, who serves as head judge on the reality cooking TV show Top Chef, doesn't live in California, he threw his star power behind AB 2316 in a press conference Tuesday, where he described the efforts he and his wife take to provide safe and healthy food for their children.

"All of the work we do at home will be for nothing if they go to school and there's no one making sure that the food is safe," he said.

Colicchio and Gabriel both said that they would like to see a federal ban on these chemicals being used in food products, but that California is a good place to start.

"In the absence of federal action, the states, states like California, have no choice but to step up and lead," Gabriel said.

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